H-1B Specialty Occupations

Alert: USCIS announced that the initial registration period for the fiscal year 2027 H-1B cap will open at noon Eastern on March 4 and run through noon Eastern on March 19, 2026. During this period, prospective petitioners and representatives must use a USCIS online account to register each beneficiary electronically for the selection process and pay the associated registration fee.

Alert: On Dec. 23, 2025, DHS announced a final rule to amend regulations governing the process by which USCIS selects H-1B registrations for unique beneficiaries for filing of H-1B cap-subject petitions. The rule implements a weighted selection process that will favor allocating H-1B visas to higher-skilled and higher-paid aliens while maintaining the opportunity for employers to secure H-1B workers at all wage levels. This final rule is effective Feb. 27, 2026, and will be in place for the FY 2027 H-1B cap registration season.

ALERT: On Sept. 19, 2025, the President issued a Proclamation, *Restriction on Entry of Certain Nonimmigrant Workers*, an important initial step to reform the H-1B nonimmigrant visa program. Under the Proclamation, certain H-1B petitions filed at or after 12:01 a.m. Eastern on Sept. 21, 2025, must be accompanied by an additional $100,000 payment as a condition of eligibility. Additional information is available in the "Presidential Proclamation on Restriction on Entry of Certain Nonimmigrant Workers" section below.

This nonimmigrant classification applies to people who wish to perform services in a specialty occupation, services of exceptional merit and ability relating to a Department of Defense (DOD) cooperative research and development project, or services as a fashion model of distinguished merit or ability.

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Presidential Proclamation on Restriction on Entry of Certain Nonimmigrant Workers

On Sept. 19, 2025, the President issued a Proclamation, *Restriction on Entry of Certain Nonimmigrant Workers*, an important initial step to reform the H-1B nonimmigrant visa program. Under the Proclamation, certain H-1B petitions filed at or after 12:01 a.m. Eastern on Sept. 21, 2025, must be accompanied by an additional $100,000 payment as a condition of eligibility.

Who is subject to the $100,000 payment:

The Proclamation applies to certain H-1B petitions filed at or after 12:01 a.m. Eastern on Sept. 21, 2025, on behalf of beneficiaries who are outside the United States and do not have a valid H-1B visa. The Proclamation

also applies if a petition filed at or after 12:01 a.m. Eastern on September 21, 2025, requests consular notification, port of entry notification, or pre-flight inspection for an alien in the United States.

In addition, if a petition filed at or after 12:01 a.m. Eastern on Sept. 21, 2025, requests a change of status or amendment or extension of stay and USCIS determines that the alien is ineligible for a change of status or an amendment or extension of stay (for example, is not in a valid nonimmigrant visa status or if the alien departs the United States prior to adjudication of a change of status request), the Proclamation will apply and the payment must be paid according to the instructions provided by USCIS.

The Proclamation does not apply to any previously issued and currently valid H-1B visas, or any petitions submitted prior to 12:01 a.m. Eastern on Sept. 21, 2025. In addition, the Proclamation does not prevent any holder of a current H-1B visa, or any alien beneficiary following petition approval, from traveling in and out of the United States.

The Proclamation also does not apply to a petition filed at or after 12:01 a.m. Eastern on Sept. 21, 2025, that is requesting an amendment, change of status, or extension of stay for an alien inside the United States where the alien is granted such amendment, change, or extension. Further, an alien beneficiary of such petition will not be considered to be subject to the payment if he or she subsequently departs the United States and applies for a visa based on the approved petition and/or seeks to reenter the United States on a current H-1B visa.

How to pay the $100,000 payment:

Petitioners should submit the required $100,000 payment using pay.gov, following the instructions on pay.gov at H-1B Visa Payment to Remove Restriction.

When to pay the $100,000 payment:

Payment must be made before filing a petition with USCIS, as petitioners must submit proof that the payment has been scheduled from pay.gov or evidence of an exception from the $100,000 payment from the Secretary of Homeland Security at the time of filing the H-1B petition. Petitions subject to the $100,000 payment that are filed without a copy of the proof of the payment from pay.gov or evidence of an exception from the Secretary of Homeland Security will be denied.

Exceptions granted by the Secretary of Homeland Security:

Exceptions to the $100,000 payment are granted by the Secretary of Homeland Security in the extraordinarily rare circumstance where the Secretary has determined that a particular alien worker's presence in the United States as an H-1B worker is in the national interest, that no American worker is available to fill the role, that the alien worker does not pose a threat to the security or welfare of the United States, and that requiring the petitioning employer to make the payment on the alien's behalf would significantly undermine the interests of the United States. Petitioning employers who believe their alien worker satisfies this high threshold may seek an exception by sending their request and all supporting evidence to H1BExceptions@hq.dhs.gov.

Eligibility Criteria

Classification	General Requirements (among others)	Labor Condition Application Required?
H-1B Specialty Occupations	The occupation requires: • Theoretical and practical application of a body of highly specialized knowledge; and • Attainment of a bachelor's or higher degree in a directly related* specific specialty (or its equivalent) as a minimum for entry into the occupation in the United States. The position must also meet one of the following criteria to qualify as a specialty occupation: • A U.S. bachelor's or higher degree in a directly related specific specialty, or its equivalent, is normally the minimum entry requirement for the particular occupation; • A U.S. bachelor's or higher degree in a directly related specific specialty, or its equivalent, is normally required to perform job duties in parallel positions among similar organizations in the employer's industry in the United States; • The employer, or third party if the beneficiary will be staffed to that third party, normally requires a U.S. bachelor's or higher degree in a directly related specific specialty, or its equivalent, to perform the job duties of the position; or • The specific duties of the offered position are so specialized, complex, or unique that the knowledge required to perform them is normally associated with the attainment of a U.S. bachelor's or higher degree in a	Yes. The prospective petitioner must include evidence that a Form ETA-9035/9035E, Labor Condition Application (LCA) has been certified by the Department of Labor (DOL), with Form I-129, Petition for a Nonimmigrant Worker. See the DOL's Office of Foreign Labor Certification. For more information see the Information for Employers and Employees page.

Classification	General Requirements (among others)	Labor Condition Application Required?
	directly related specific specialty, or its equivalent.* For you to qualify to perform services in a specialty occupation you must meet one of the following criteria: • Hold a U.S. bachelor's or higher degree required by the specialty occupation from an accredited college or university; • Hold a foreign degree that is the equivalent to a U.S. bachelor's or higher degree required by the specialty occupation from an accredited college or university; • Hold an unrestricted state license, registration, or certification that authorizes you to fully practice the specialty occupation and be immediately engaged in that specialty in the state of intended employment; or • Have education, specialized training, and/or progressively responsible experience that is equivalent to the completion of a U.S. bachelor's or higher degree in the specialty occupation, and have recognition of expertise in the specialty through progressively responsible positions directly related to the specialty.**	

Classification	General Requirements (among others)	Labor Condition Application Required?
H-1B2 DOD Researcher and Development Project Worker	The job must require a bachelor's or higher degree, or its equivalent, to perform the duties. The petition must be accompanied by: • A verification letter from the DOD project manager for the particular project stating that the beneficiary will be working on a cooperative research and development project or a coproduction project under a reciprocal government-to-government agreement administered by DOD. Details about the specific project are not required. • A general description of the beneficiary's duties on the particular project and the actual dates of the beneficiary's employment on the project. • A statement indicating the names of aliens currently employed on the project in the United States and their dates of employment and the names of aliens whose employment on the project ended within the past year. To be eligible for this classification you must have a bachelor's or higher degree or its equivalent in the occupational field in which you will be performing services. This requirement can be met based on one of the following criteria: • Hold a U.S. bachelor's or higher degree required by the duties from an accredited college or university; • Hold a foreign degree that is the equivalent to a U.S. bachelor's or higher degree from an accredited college or university;	No.

Classification	General Requirements (among others)	Labor Condition Application Required?
	• Hold an unrestricted state license, registration, or certification that authorizes you to fully practice the duties of the job and be immediately engaged in that specialty in the state of intended employment; or • Have education, specialized training, and/or progressively responsible experience in the specialty that is equivalent to the completion of a U.S. bachelor's or higher degree and have recognition of expertise in the specialty through progressively responsible positions directly related to the specialty.**	
H-1B3 Fashion Model	The position or services must require a fashion model of prominence. To be eligible for this visa category you must be a fashion model of distinguished merit and ability.	Yes. The prospective petitioner must include evidence that a Form ETA-9035/9035E, Labor Condition Application (LCA) has been certified by the Department of Labor (DOL), with the Form I-129. See the links to the Department of Labor's Office of Foreign Labor Certification.

*For more information, see 8 CFR 214.2(h)(4)(iii)(A). For purposes of the specialty occupation criteria at paragraphs (h)(4)(iii)(A)(1) through (4), "normally" means conforming to a type, standard, or regular pattern, and is characterized by what is considered usual, typical, common, or routine. Normally does not mean always.

For purposes of the specialty occupation definition and criteria, "directly related" means that there is a logical connection between the required degree, or its equivalent, and the duties of the position. See 8 CFR 214.2(h)(4)(ii).

**For more information see 8 CFR 214.2(h)(4)(iii)(C).

H-1B Licensing

Some professions require an H-1B beneficiary to hold a state or local license authorizing the beneficiary to fully practice the specialty occupation.

If an occupation in the state of intended employment requires such a license, an H-1B beneficiary seeking classification in that occupation generally must have that license before the petition is approved, rather than at the time of filing the petition. See 8 CFR 214.2(h)(4)(v)(A)–(B). When a license is required, but there is no evidence of the beneficiary holding one, USCIS will generally issue a request for evidence of the required license.

H-1B Electronic Registration Process

Petition Filing Process

Labor Condition Application (LCA)

Period of Stay

As an H-1B specialty occupation worker, you may generally be admitted for a period of up to 3 years. This initial period of admission may generally be extended for an additional period of up to 3 years, for a total period of admission of 6 years. If you possess a controlling interest in the petitioning organization or entity, meaning you own more than 50% of the petitioner or have majority voting rights in the petitioner, the approval of your initial petition and your first extension petition will each be limited to a validity period of up to 18 months.

However, you may be eligible for an H-1B extension beyond the sixth year under 8 CFR 214.2(h)(13)(iii)(E) if you are the beneficiary of an approved immigrant visa petition under the EB-1, EB-2, or EB-3 classifications, and are eligible to be granted that immigrant status but for application of the per country or worldwide limitations on immigrant visas. Petitioners must demonstrate the visa is not available as of the date they file an H-1B petition with USCIS. We may grant extensions on this basis in up to 3-year increments until we make a final decision to revoke the approval of the immigrant visa petition or to approve or deny your application for an immigrant visa or application to adjust status to lawful permanent residence.

Alternatively, under 8 CFR 214.2(h)(13)(iii)(D), you may be eligible for an H-1B extension beyond the sixth year if at least 365 days have passed since a labor certification was filed with the Department of Labor on your behalf (if such certification is required) or an immigrant visa petition was filed with USCIS on your behalf.

You are ineligible for this extension beyond the sixth year if you fail to file an adjustment of status application or apply for an immigrant visa within 1 year of an immigrant visa being available. If the accrual of such 1-year period is interrupted by the unavailability of an immigrant visa, you will have a new 1-year period after an immigrant visa again becomes immediately available, during which you generally must file an adjustment of status application or apply for an immigrant visa. We may, in our discretion, excuse a failure to file an adjustment of status application or apply for an immigrant visa within 1 year of an immigrant visa being available if your employer establishes that the failure to apply was due to circumstances beyond your control. When considering whether to excuse a failure to timely file within 1 year, we will look at the totality of the circumstances, which may include:

- Whether there was a change of employment;
- Whether the change of employment was voluntary;
- When and why the employment with the original employer ended; and

- What steps you and your new employer took after the change of employment to file an adjustment of status application or apply for an immigrant visa.

We may excuse a failure to timely file in cases of both voluntary and involuntary change of employment when considering the totality of the circumstances. We may grant extensions under this provision in up to 1-year increments until the approved permanent labor certification expires or a final decision has been made to:

- Deny the application for permanent labor certification, or, if approved, to revoke or invalidate the approval;
- Deny the immigrant visa petition, or, if approved, revoke the approval;
- Deny or approve your application for an immigrant visa or application to adjust status to lawful permanent residence; or
- Administratively or otherwise close the application for permanent labor certification, immigrant visa petition, or application to adjust status.

Your employer will be liable for the reasonable costs of your return transportation if they terminate your employment before the end of your period of authorized stay. Your employer is not responsible for the costs of your return transportation if you voluntarily resign from your position. For more information, please see Options for Nonimmigrant Workers Following Termination of Employment.

H-1B Cap

The H-1B classification has an annual numerical limit (cap) of 65,000 new statuses or visas each fiscal year (with certain deductions and additions based on H-1B1 set asides and usage). An additional 20,000 petitions filed on behalf of beneficiaries who have earned a master's degree or higher from a U.S. institution of higher education are exempt from the cap. Additionally, H-1B workers who are petitioned for or employed at an institution of higher education or its affiliated or related nonprofit entities, a nonprofit research organization, or a government research organization, are not subject to this numerical cap.

For further information about the numerical cap, see our H-1B Cap Season page.

Changing Employers or Employment Terms with the Same Employer (Portability)

Changing Employers

When can I begin working for a new H-1B employer if I change employers?

- If you are changing H-1B employers, you may begin working for the new employer as soon as they properly file a non-frivolous Form I-129 petition on your behalf, or as of the requested start date on that petition, whichever is later.
- To be eligible for portability, you must not have been employed without authorization from the time of your last admission into the United States, and your new employer must properly file a new, non-frivolous petition before your H-1B period of authorized stay expires.

Will I still have employment authorization if I change employers?

- If you are eligible for H-1B portability, your employment is authorized until USCIS has made a decision on the Form I-129.
- If the new I-129 petition is approved, you may continue working for the new employer for the period of time indicated on the new petition approval.
- If the new petition is denied, you may continue working for your previous employer if your prior period of authorized employment is still valid, but your authorization to work based on portability ceases upon denial of the petition.
- If you are laid off, fired, quit, or otherwise cease employment with your previous employer, you may have up to 60 consecutive days or until the end of your authorized validity period, whichever is shorter, to find new employment, change status, or depart the country.

Can I move from cap-exempt to cap-subject employment?

- If you are moving from cap-exempt to cap-subject employment, your new employer's H-1B petition will be subject to the H-1B cap. If subject to the cap, your new employer must first submit an electronic registration when registration period opens. This is typically in March.
- All registrants of selected beneficiaries will be notified of selection and selection notices will be uploaded to their account informing them that they may file a petition for the beneficiary named in the selection notice during the applicable filing period. H-1B cap petitions must have a start date of Oct. 1 (or later) of the applicable fiscal year and may not be filed more than 6 months before the requested start date on the petition.
- If you are currently employed in a cap-exempt position, you may engage in concurrent employment in a cap-subject position as long as you will continue to be employed in the cap-exempt position. You may begin working concurrently for the cap-subject employer as soon as they properly file a non-frivolous Form I-129 petition on your behalf, or as of the requested start date on that petition, whichever is later. As long as you continue your cap-exempt employment, were previously counted toward the cap, or otherwise remain cap exempt, you will not become subject to the H-1B cap again during the same H-1B validity period.

Changing Employment Terms with the Same Employer

What if I want to start new employment or change employment terms with my current employer?

- Form I-129 is also used to request new employment or a change of employment with the same employer.
- If your current H-1B employer properly files a non-frivolous Form I-129 requesting new employment or a change of employment on your behalf, you are authorized to work according to the terms of the new or changed employment once that petition is filed, or as of the requested start date on that petition, whichever is later.

Family of H-1B Nonimmigrants

More Information

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